

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #15	CCRB Case #: 201702059	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/10/2017 12:01 AM	Location of Incident: East 168th Street and Webster Avenue	Precinct: 42	18 Mo. SOL 9/10/2018	EO SOL 9/10/2018	
Date/Time CV Reported Fri, 03/10/2017 1:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/17/2017 12:20 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mario Dieujuste	15799	955882	PSA 7
2. SGT Lamont Gibson	05355	944594	PSA 7
3. POM Jose Cordero	14899	956547	PSA 7
4. POM Manolin Molina	27653	936051	PSA 7

Officer(s)	Allegation	Investigator Recommendation
A.SGT Lamont Gibson	Abuse: Sergeant Lamont Gibson stopped § 87(2)(b)	
B.SGT Lamont Gibson	Abuse: Sergeant Lamont Gibson stopped § 87(2)(b)	
C.POM Jose Cordero	Abuse: Police Officer Jose Cordero frisked § 87(2)(b)	
D.POM Manolin Molina	Abuse: Police Officer Manolin Molina frisked § 87(2)(b)	
E.POM Jose Cordero	Abuse: Police Officer Jose Cordero searched § 87(2)(b)	
F.SGT Lamont Gibson	Abuse: Sergeant Lamont Gibson searched § 87(2)(b)	
G.SGT Lamont Gibson	Abuse: Sergeant Lamont Gibson strip-searched § 87(2)(b)	
H.POM Jose Cordero	Abuse: Police Officer Jose Cordero threatened to arrest § 87(2)(b)	
I.SGT Lamont Gibson	Abuse: Sergeant Lamont Gibson threatened to arrest § 87(2)(b)	
J.POM Mario Dieujuste	Abuse: Police Officer Mario Dieujuste threatened to arrest § 87(2)(b)	
K.SGT Lamont Gibson	Discourtesy: Sergeant Lamont Gibson spoke discourteously to § 87(2)(b)	
L.POM Jose Cordero	Discourtesy: Police Officer Jose Cordero spoke discourteously to § 87(2)(b)	
M.POM Mario Dieujuste	Discourtesy: Police Officer Mario Dieujuste spoke discourteously to § 87(2)(b)	
N.SGT Lamont Gibson	Abuse: Sergeant Lamont Gibson interfered with § 87(2)(b)'s use of a recording device.	

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b), § 87(2)(g)		

Case Summary

On March 10, 2017, § 87(2)(b) called the NYPD IAB Command Center to file this complaint. Original Log § 87(2)(b) was generated and it was received at the CCRB on March 17, 2017.

On March 10, 2017, at approximately 12:00am, § 87(2)(b) and his friend § 87(2)(b) exited the Webster Deli, located at the intersection of East 168th Street and Webster Avenue in the Bronx. After crossing Webster Avenue, § 87(2)(b) and § 87(2)(b) were stopped by Sgt. Lamont Gibson, Police Officer Mario Dieujuste, Police Officer Jose Cordero, and Police Officer Manolin Molina, all of PSA 7 (**Allegations A and B**). PO Cordero approached § 87(2)(b) and allegedly patted the front of his jacket, then moved behind § 87(2)(b) (**Allegation C**). PO Molina approached § 87(2)(b) and allegedly patted the front of his jacket (**Allegation D**). PO Cordero then allegedly reached inside § 87(2)(b)'s pockets and inside his pants (**Allegation E**). Sgt. Gibson approached the front of § 87(2)(b) and allegedly reached inside § 87(2)(b)'s pants pockets and jacket pockets (**Allegation F**). Sgt. Gibson then allegedly pulled § 87(2)(b)'s pants down, exposing his boxer shorts (**Allegation G**). While he was being searched, both Sgt. Gibson and PO Cordero allegedly stated, "don't resist or you'll go to jail." (**Allegations H and I**). PO Dieujuste, who was standing with § 87(2)(b) allegedly stated to § 87(2)(b) "We'll take you to jail too." (**Allegation J**). In addition, PO Cordero and Sgt. Gibson allegedly told § 87(2)(b) to, "shut the fuck up." (**Allegations K and L**). § 87(2)(b) stated to the officers that he was going to file a complaint against them and PO Dieujuste allegedly stated, "We don't give a fuck." (**Allegation M**). After § 87(2)(b) pulled his pants up, he retrieved his phone from his jacket pocket and stated that he was going to record the officers. Sgt. Gibson allegedly knocked the phone out of § 87(2)(b)'s hand (**Allegation N**). The officers then left. Neither § 87(2)(b) nor § 87(2)(b) were issued any summons.



2017-07-13_14-22-39.mp4

Video footage was provided by § 87(2)(b) to NYPD IAB. It was then obtained by the investigation. The video was taken by § 87(2)(b) from his cellphone. The video begins after the incident, as the officers are reentering their vehicle. It does not depict any FADOs. On March 31, 2017, fieldwork was conducted at the Webster Deli, which is located at the intersection of East 168th Street and Webster Avenue in the Bronx. The store manager stated that video footage was not stored for more than 20 days. As such, no video was obtained from this location.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during his sworn statement. § 87(2)(b)
- A FOIL request for notices of claim was filed with the Office of the New York City Comptroller on April 28, 2017. The results of this inquiry indicated that a Personal Injury

Claim was filed with the New York City Comptroller on behalf of § 87(2)(b) by the law firm of § 87(2)(b). On July 13, 2017 the New York City Law Department informed the investigator that a 50-H hearing had yet to be scheduled (BR 01).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) § 87(2)(b)
- During his ten year tenure, Sgt. Gibson has been the subject of 23 prior CCRB allegations over eight cases. Five of these allegations were substantiated involving three cases. In CCRB case 201005227, the following allegations were substantiated: Abuse-Frisk and Abuse-Question. For each, the Board recommended Charges. NYPD's disposition was instructions. In CCRB case 201110762, an allegation of Abuse-Vehicle Stop was substantiated. The Board recommended Charges and the NYPD issued no disciplinary action. In CCRB case 201510005, the following allegations were substantiated: Force-Gun Pointed and Force-Nightstick as club. For each, the Board recommended Command Discipline B. The NYPD issued no disciplinary action. § 87(4-b) § 87(2)(g)
- During his two year tenure, PO Cordero has been the subject of one prior CCRB allegation, which was not substantiated.
- During his 12 year tenure, PO Molina has been the subject of 15 prior CCRB allegations over six cases. None of the prior allegations were substantiated. § 87(2)(g)
- During his three year tenure, PO Dieujuste has been the subject of two prior CCRB allegations in one case. Neither allegation was substantiated.

Potential Issues

- During his sworn statement, provided on April 12, 2017, § 87(2)(b) identified the person he was walking with as § 87(2)(b) and alleged that § 87(2)(b) was frisked by an officer. § 87(2)(b) was contacted and provided an unverified phone statement. § 87(2)(b) was twice scheduled for interviews at the CCRB, both of which he failed to appear for. He then became unresponsive to subsequent calls, text messages, and letters. As a result, a statement was not obtained from § 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

- During his sworn statement, obtained on April 12, 2017, § 87(2)(b) described PO 1 as a white or Hispanic male, 5'9" tall, more than 200 pounds, with black hair (BR 05).
- PO Cordero is listed as a Hispanic male, 6'0" tall, 200 pounds, with black hair (BR 06).

- During PO Dieujuste’s sworn statement, provided on May 24, 2017, he testified that he observed PO Cordero frisk § 87(2)(b) during the incident (BR 07).
- As PO Cordero’s pedigree largely aligns with that provided by § 87(2)(b) § 87(2)(g) [REDACTED]
- § 87(2)(b) testified that while PO 2 was standing in front of him, he read the name “Gibson,” off his name plate (BR 03).
- § 87(2)(b)’s physical description of PO 2 is of a black male, 5’9” tall, muscular build, bald, 40s, in an NYPD uniform.
- Sgt. Gibson is listed as a black male, 5’11” tall, 220 pounds, and is bald (BR 08).
- As § 87(2)(b) stated that he observed Sgt. Gibson’s name, and the physical description he provided corresponds with that of Sgt. Gibson, § 87(2)(g) [REDACTED].
- § 87(2)(b) testified that PO 3 approached § 87(2)(b) at the beginning of the interaction and remained near him for the duration.
- During his unverified telephone statement, obtained on April 14, 2017, § 87(2)(b) stated that PO Dieujuste, who he was familiar with from a prior arrest, approached him at the onset of the incident (BR 09).
- PO Dieujuste testified that he approached § 87(2)(b) at the beginning of the incident. He further confirmed that he was familiar with § 87(2)(b) from the prior arrest.
- § 87(2)(g) [REDACTED]
- During his sworn statement, § 87(2)(b) alleged that an officer patted the outside of § 87(2)(b) jacket. § 87(2)(b) testified that he did not know which officer it was, nor could he say what the officer looked like. § 87(2)(b) could only say that it was not PO 1 or PO 2.
- During his unverified telephone statement, § 87(2)(b) described the officer that patted him down as a Hispanic male, 5’7” tall, average build, and in his 30s and further stated that it was not PO Dieujuste nor the two officers interacting with § 87(2)(b)
- PO Molina is listed as a Hispanic male, 5’7” tall, 175 pounds, and is § 87(2)(b) old (BR 10).
- PO Molina testified that he couldn’t recall the incident. In addition, no other officer could place where he was during the incident (BR 11).
- § 87(2)(g) [REDACTED]

Allegations not pleaded

- § 87(2)(g) [REDACTED]

Allegation A –Abuse of Authority: Sergeant Lamont Gibson stopped § 87(2)(b)

Allegation B –Abuse of Authority: Sergeant Lamont Gibson stopped § 87(2)(b)

It is undisputed that Sgt. Gibson stopped § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b) testified that § 87(2)(b) and he left the Webster Deli and proceeded to cross Webster Avenue. As they continued to walk down Webster Avenue, § 87(2)(b) observed an unmarked vehicle pull up in front of them and three to four officers exited the vehicle. Three officers approached § 87(2)(b) and him. § 87(2)(b) testified that he believed one officer stayed either inside the vehicle or in its immediate vicinity. § 87(2)(b) asked, “what’s up?” and no officers responded (BR 05).

Sgt. Gibson testified that he observed § 87(2)(b) and § 87(2)(b) crossing Webster Avenue at its intersection with East 168th Street. Sgt. Gibson could not recall if he was driving or not when he made this observation. Sgt. Gibson observing the two individuals jaywalking by crossing the street during the “Don’t Walk” signal. In addition, they were obstructing several vehicles that were attempting to drive. They were doing so by holding their hands up for the vehicles to stop as the individuals crossed. Sgt. Gibson couldn’t recall how many vehicles were stopped or impeded by § 87(2)(b) and § 87(2)(b). Sgt. Gibson didn’t communicate his observations to the other officers, however he believed they had seen the infraction as well (BR 12).

Sgt. Gibson testified that other than jaywalking, he didn’t make any further observations about § 87(2)(b) and § 87(2)(b). Sgt. Gibson verbalized his decision to stop § 87(2)(b) and § 87(2)(b) to the other officers in the vehicle.

PO Dieujuste testified that he observed § 87(2)(b) and § 87(2)(b) jaywalk and obstruct vehicular traffic as they crossed Webster Avenue. He stated that they were jaywalking by crossing outside of the pedestrian box. As they were crossing, they stopped in the middle of the road, which obstructed multiple vehicles from travelling. PO Dieujuste couldn’t recall how many vehicles had to stop as a result. PO Dieujuste couldn’t recall any communication in the vehicle regarding the infractions. In addition, he didn’t recall Sgt. Gibson instructing the officers to stop the two individuals. He further stated that he didn’t know whose decision it was to stop the two individuals, but that it was his understanding that they were being stopped for the jaywalking and obstructing traffic infractions (BR 07).

Neither PO Cordero nor PO Molina had any recollection of this incident (BR 11, 13).

PO Dieujuste was the only officer present to note the interaction with an entry on a fly page in his memo book and there is no timestamp. The notation states that the two civilians, one identified by being “known to the Dept. § 87(2)(b) were stopped for Jaywalking and Obstructing Traffic (BR 14).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: Police Officer Jose Cordero frisked § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Manolin Molina frisked § 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Jose Cordero searched § 87(2)(b)

Allegation F – Abuse of Authority: Sergeant Lamont Gibson searched § 87(2)(b)

Allegation G – Abuse of Authority: Sergeant Lamont Gibson strip-searched § 87(2)(b)

§ 87(2)(b) alleged that after they were stopped, PO Cordero frisked and searched him while Sgt. Gibson also searched him and pulled his pants down exposing his boxer shorts. In addition, § 87(2)(b) alleged that PO Molina frisked § 87(2)(b)

§ 87(2)(b) testified that when the officers approached, PO Cordero approached him and patted the chest area of his jacket. He then went behind § 87(2)(b) and Sgt. Gibson approached the front of him. § 87(2)(b) also observed an officer approach § 87(2)(b) and pat the outside of his jacket (BR 05).

PO Cordero restrained § 87(2)(b) by reaching his right arm over § 87(2)(b)'s right shoulder. Sgt. Gibson reached inside all of § 87(2)(b)'s pockets, which included his front pants pockets as well as his jacket pockets. Sgt. Gibson didn't remove anything from his pockets. While PO Cordero was restraining him, PO Cordero also reached into several of § 87(2)(b)'s pockets. § 87(2)(b) was unable to specify which pockets but stated that he could feel PO Cordero's hand in several pockets. PO Cordero then placed his left hand inside § 87(2)(b)'s boxer shorts and reached around his buttocks area. PO Cordero then moved his hand to § 87(2)(b)'s genital area. While this was going on, § 87(2)(b) stated that he was moving his body in response to the search.

§ 87(2)(b) stated, during his unverified telephone statement, that an officer had approached him and patted the outside of his pants pockets. § 87(2)(b) did not provide any details regarding a search of § 87(2)(b) (BR 09).

Sgt. Gibson then pulled § 87(2)(b)'s pants down to approximately his knees. § 87(2)(b)'s boxer shorts remained up and were exposed. § 87(2)(b) then pulled his pants up. His pants were down for a couple of seconds. Neither officer touched the exposed area while his pants were down (BR 12).

Sgt. Gibson testified that as he and the other officers were approaching § 87(2)(b) and § 87(2)(b), § 87(2)(b) had his hand in his pocket. Sgt. Gibson couldn't recall which side the

pocket was on or what article of clothing the pocket was on. An officer—Sgt. Gibson couldn't recall which one—instructed § 87(2)(b) to take his hand out of his pocket. § 87(2)(b) did not remove his hand from his pocket. He was instructed to do so multiple times. While his hand was in his pocket, Sgt. Gibson couldn't tell if there was anything else in the pocket.

Within seconds of being approached, an officer—Sgt. Gibson couldn't recall which—pulled § 87(2)(b)'s hand out of his pocket. The officer then patted the outside of that pocket. Sgt. Gibson reiterated that he couldn't recall which officer did this, but stated that it was not him.

Sgt. Gibson denied reaching in § 87(2)(b)'s pockets or pants. He also denied pulling down § 87(2)(b)'s pants. Further, he stated that § 87(2)(b)'s pants did not fall down during the incident. Sgt. Gibson did not observe any other officer reach inside § 87(2)(b)'s pockets or pants. Sgt. Gibson testified that he couldn't recall where he was positioned in relation to the civilians.

PO Dieujuste testified that prior to stopping the two individuals, he observed § 87(2)(b) reach towards his right waistband area with his hand. § 87(2)(b) patted the area one time and then removed his hand. PO Dieujuste made this observation from approximately two car lengths away. He did not observe anything in the area that § 87(2)(b) had patted. PO Dieujuste couldn't recall if he relayed this observation to his partners (BR 07).

After the officers exited their vehicle and approached § 87(2)(b) and § 87(2)(b) PO Dieujuste was standing in front of § 87(2)(b) PO Cordero was standing in front of § 87(2)(b) PO Dieujuste couldn't recall where the other two officers were located, but confirmed that they were in the area.

Approximately 10-15 seconds after initially stopping the individuals, PO Dieujuste observed § 87(2)(b) pat the same right hip area as he had before. PO Dieujuste testified that he observed a bulge in the area that § 87(2)(b) had patted. He couldn't describe its shape or size. He stated that he believed it was possible that the bulge was a weapon and that § 87(2)(b) was attempting to secure it when he patted it. He believed this because of the conditions of the precinct and because the patting action is consistent with someone attempting to secure a weapon. PO Dieujuste could not recall articulating his observations to his partners.

PO Dieujuste testified that after § 87(2)(b) patted his right hip area, PO Cordero asked § 87(2)(b) if he had anything on him. PO Dieujuste couldn't recall if § 87(2)(b) replied. PO Cordero then patted the outside of the right hip area on § 87(2)(b). He didn't see PO Cordero pat anywhere else.

PO Dieujuste testified that he did not observe any other officer frisk § 87(2)(b). He also didn't observe any officer reach inside § 87(2)(b)'s pockets or pants. In addition, he didn't observe any officer pull down § 87(2)(b)'s pants.

PO Cordero testified that he had no recollection of the incident. When asked if he frisked or searched § 87(2)(b) he stated that he could not recall (BR 13).

PO Molina also had no recollection of this incident. He denied frisking anyone during the incident (BR 11).

An officer may conduct a limited pat down search for a weapon if he reasonably suspects that he is in danger of physical injury. However, after any reasonable basis for the officer's fear for his safety has abated, he is not justified in continuing the search for contraband or evidence. People v. Rodriguez, 18 Misc. 3d 1124(A) (BR 15)

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Allegation H –Abuse of Authority: Police Officer Jose Cordero threatened to arrest

§ 87(2)(b)

Allegation I –Abuse of Authority: Sergeant Lamont Gibson threatened to arrest

§ 87(2)(b)

Allegation J –Abuse of Authority: Police Officer Mario Dieujuste threatened to arrest

§ 87(2)(b)

Allegation K –Discourtesy: Sergeant Lamont Gibson spoke discourteously to

§ 87(2)(b)

Allegation L –Discourtesy: Police Officer Jose Cordero spoke discourteously to

§ 87(2)(b)

Allegation M –Discourtesy: Police Officer Mario Dieujuste spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) alleged that PO Cordero and Sgt. Gibson threatened to arrest him, while PO Dieujuste threatened to arrest § 87(2)(b). In addition, they all allegedly used profanity during the interaction.

§ 87(2)(b) testified that while PO Cordero and was restraining § 87(2)(b) he was moving his body as a result of the ongoing search. While this was going on, both PO Cordero and Sgt. Gibson stated to him multiple times, “don’t resist or you’ll go to jail.” In addition, both officers told § 87(2)(b) to, “shut the fuck up,” multiple times. During the search, § 87(2)(b) stated that he was going to report them and PO Cordero stated, “we don’t give a fuck.” PO Dieujuste also stated, “We don’t give a fuck.” While PO Dieujuste was standing with § 87(2)(b) he stated to § 87(2)(b) “We’ll take you to jail too.” (BR 05)

PO Dieujuste testified that during the incident, § 87(2)(b) was cursing loudly at the officers. PO Dieujuste denied using any profanity during the incident. He also denied hearing any other officer do so. PO Dieujuste denied threatening to arrest either individual and denied hearing any other officer do so. He testified that other than the jaywalking and obstructing vehicular traffic, neither individual did anything that could have resulted in an arrest (BR 07).

Sgt. Gibson also testified that § 87(2)(b) was cursing at the officers for the majority of the incident. In addition, § 87(2)(b) was making defensive movements. Sgt. Gibson specified that § 87(2)(b) pulled his body back as the officer pulled § 87(2)(b)’s hand out of his pocket and frisked the area. Sgt. Gibson denied using any profanity during the incident and denied hearing any other officer do so. He also denied threatening to arrest either individual and denied hearing any other officer do so. Sgt. Gibson testified that neither civilian was ever considered under arrest and that he didn’t observe them do anything that would have warranted an arrest (BR 12).

§ 87(2)(g)

§ 87(2)(g)

Allegation N –Abuse of Authority: Sergeant Lamont Gibson interfered with § 87(2)(b)s use of a recording device.

§ 87(2)(b) alleged that after he was searched, he attempted to record the incident with his cellphone. However when he held it up, Sgt. Gibson knocked the phone out of his hand, preventing him from recording.

§ 87(2)(b) testified that after his pants were pulled up, he stated, “I’m going to get you on videotape.” As he said that, he removed his cell phone from the front right pocket of his jacket. As he did so, Sgt. Gibson knocked the phone out of § 87(2)(b)s hand causing it to fall to the ground. The officers then began to walk away and § 87(2)(b) picked up his phone and briefly recorded as Sgt. Gibson was reentering his vehicle (BR 05).

A Personal Injury Claim Form, filed with the Office of the New York City Comptroller on , states that while § 87(2)(b) was attempting to remove his phone from his pocket, an officer knocked it to the ground. (BR 01).

In his unverified telephone statement, § 87(2)(b) stated that during the incident, an officer threw § 87(2)(b)s phone onto the ground (BR 09).

Sgt. Gibson testified that he did not observe § 87(2)(b) to have anything in his hands. He did not hear § 87(2)(b) stated that he would, or wanted to, record their interaction. In addition, he didn’t observe § 87(2)(b) hold his phone up in a position to record. Sgt. Gibson denied knocking § 87(2)(b)s phone out of his hand (BR 12).

PO Dieujuste testified that during the incident, § 87(2)(b) had his cellphone in his hand. He was not sure when § 87(2)(b) pulled the cell phone out or if it was out for the entirety of the incident. § 87(2)(b) appeared to be recording the incident because he was holding the phone up in a manner that suggested he was recording. PO Dieujuste testified that he did not hear any officer say anything to § 87(2)(b) with regard to his recording of the incident. He also denied observing an officer knock the phone out of § 87(2)(b)s hands (BR 07).

The First Amendment’s right of access to information the public has the commensurate right to record—photograph, film, or audio record—police officers conducting official police activity in public areas. Fields v. City of Philadelphia, 2017 U.S. App. LEXIS 12159 (3d Cir. Pa. July 7, 2017) (BR 20). The recording of officers during the performance of their duties is not a violation of the law, so long as this recording does not amount to an actual interference with the police activity. Office of the Deputy Commissioner-Legal Matters, Legal Bureau Bulletin, Vol. 46, No. 2, May 2016 (BR 21).

§ 87(2)(g)

§ 87(2)(g) [Redacted text block]

§ 87(4-b) § 87(2)(g) [Redacted text block]

[Redacted text block]

[Redacted text block]

[Redacted text block]

Squad: 15

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date